Licensed Documents
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RayWhite.

Tenancy Agreement

RTA S13A minimum information designated by S.S number.

TENANCY ADDRESS

Address	3a Bennett Road, Pakuranga, Auckland 2010	1(c), 1(g)

TENANCY TERM

Term type	Fixed	**Start date**	11/11/2023 1(e)	**End date**	11/11/2024 1(p)

PROPERTY MANAGEMENT FIRM - KNOWN AS THE AGENT FOR THE LANDLORD

Company / Agent	Five AM Property Management Ltd		1(a)
Address for service	10 Uxbridge Road, Howick, Auckland, 2014		1(a)
Contact person	Maree Chisnall		
Contact phone	02102229535	**Contact mobile**	02102229535
Email address for service	maree.chisnall@raywhite.com		1(aa)

Notice to tenants - The person/firm named in the "Property Management Firm/Agent Details", is an intermediary between the owner/principal/landlord and you as tenant. The agent is acting "as an agent for" or "on account of" the landlord. NOTE

LANDLORD DETAILS, ADDRESS FOR SERVICE, AND CONTACT EMAIL - KNOWN AS THE OWNER / PRINCIPAL / LANDLORD 1(aa),1(ab),1(f)

Vivienne Lawson, C/O Five AM Property Management Ltd, 10 Uxbridge Road, Howick, Auckland, 2014 , 09 538 0680 , rentals.howick.nz@raywhite.com

CHATTELS PROVIDED WITH THE TENANCY 1(o)

Fixed floor coverings, Garage door opener, Light fittings, Stove, Rangehood, Blinds, Dishwasher, Alarm, Heat Pump

TENANCY COSTS

Rent	$650.00	1(j)	**Bond**	$2,600.00	1(i)
Rent frequency	Weekly	1(k)	**Rent in advance**	$1,300.00	
1st rent payment date	24/11/2023		**Move in total**	$3,900.00	

PROPERTY MANAGEMENT COMPANY BANK ACCOUNT

Bank	BNZ		**Account number**	02-0108-0550784-02	1(l)
Account name	FIVE AM PROPERTY MANAGEMENT LIMITED				
Branch			**Reference**	T550953	

Rent shall be paid weekly in advance up to the termination of the tenancy, direct to the bank account of the agent, details set out above. Note, payments to be made on time in a single sum.

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TENANT 1 DETAILS

Name Salman Muhammad Khan 1(b)

Cell phone 022 320 5667 1(ba) **Home phone**

Work phone **Under 18 years old?** ☐ Yes ☑ No 1(h)

Email address of service salman_k18@hotmail.com 1(bb)

Licence **Passport number** DU5750362 (ex 25/10/2025)

18+ card number **Extra ID**

Address for Service - Is the tenant(s) address for service the same as the tenancy address? ☑ Yes ☐ No

If no, state address 1(b)

Emergency contact / duly authorised agent

Name Irfan Khan

Phone 00 61 468 547 261 **Relationship** Brother

Address 63 albert street , CBD , AKL , 1010

ADDITIONAL RESIDENTS

Resident 1 Laiba Khan

MAXIMUM RESIDENTS

Maximum number of residents and tenants (combined) to reside at the property must not exceed 2 (Two)

VEHICLES

Vehicle details Make/Model:

Maximum number of vehicles parked on the property must not exceed 2 (Two)

MOVING SERVICES

Electricity

LIABILITY

POWER

Meter number **Reading** **Date monitored** **Liability** ☑ Tenant ☐ Landlord ☐ N/A

WATER

Meter number **Reading** **Date monitored** **Liability** ☑ Tenant ☐ Landlord ☐ N/A

GARDENS-Liability ☑ Tenant ☐ Landlord ☐ N/A

LAWNS-Liability ☑ Tenant ☐ Landlord ☐ N/A

SMOKERS

Smokers allowed? ☐ Yes ☑ No

PETS

Pets allowed? ☐ Yes ☑ No

TERMS & CONDITIONS FOR AGREEMENT

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1. **Agreement** - The tenant confirms they have completed the tenancy application themselves and the information contained is true and correct. The tenant also agrees that the application forms part of this tenancy agreement.
2. **Applicants Consents** - I agree to the collection, use and disclosure of my personal information for the following purposes, and warrant that I have supplied all information on this form freely, including my drivers licence details and passport details. I agree that any information found through any third party databases that relates to me can also be used for the purposes outlined in this application.
3. **Dangerous substances** - The Tenant agrees neither to keep nor store any heating device or fuel for the same in or about the Property nor to store any potentially combustible substance in on or about the Property unless the storage complies with the Dangerous Goods Regulations 1976. The Tenant agrees not to do anything that would render the Property uninsurable, or cause the insurance premium to be increased.
4. **Jurisdiction** - The parties hereby agree that the Residential Tenancies Act 1986 shall apply to and affect this agreement and the Tenant agrees to rent the premises at the above stated Property.
5. **Liability** - The tenants hereby agree that they are jointly and severally liable to the landlord for any debt due arising out of the tenancy agreement between the parties, and for the performance of all covenants set out in the tenancy agreement or the Residential Tenancies Act 1986. This clause shall include the giving of Notice to terminate a periodic tenancy by any one tenant where there are two or more tenants, in any periodic tenancy, even if the other tenants do not concur with the giving of the notice.
6. **Purpose** - The purpose for the collection of the tenants information is: To create a tenancy agreement. To verify the tenants identity, perform background checks, reference checks and credit checks through the Centrix and or Equifax credit bureaus or a search of the Personal Property Security Register. To check the publicly available Ministry of Justice court databases. If there is an unpaid debt at the end of the tenancy, the tenants information may be provided to a debt collection agency for debt collection purposes. If the tenants indicate that they would like move services such as power, internet or phone to be connected at the property a representative from Moving Hub may contact the tenants, via phone or email.
7. **Recipient of Information** - The information is provided by you to the Owner/Landlord/Agent/Property Manager.
8. **Smoke Detectors And Escape From Fire** - The Tenant agrees not to tamper, or attempt to disable, disconnect or interfere in any way with any smoke alarm or any other means of escape from fire, and not to permit any occupant, guest, or visitor to do the same. The Tenant agrees that the Tenant is liable for checking and replacing the smoke alarm batteries. The Tenant agrees to advise the Landlord immediately should the alarm become inoperable for any reason.
9. **Statement of Intent** - The tenant acknowledges that there is a legal requirement for a Healthy Homes “Statement of Intent” to be included in the tenancy agreement. There is a further legal requirement that the Statement of Intent must also be signed separately by the landlord or landlords agent. The tenant further acknowledges that the landlord or landlord’s agent’s signature on the Statement of Intent applies only to the Healthy Homes Statement of Intent, not to the agreement itself. The tenancy agreement is legally binding only when both the tenant and landlord or landlord’s agent have signed their respective “Tenancy Agreement Signature Section”.
10. **Use of Property** - The Tenant agrees to use the Property principally for residential purposes and not use it for any unlawful purpose. The Tenant agrees not to possess or take illegal substances in the Property and not to allow any other occupants, guests or invitees to possess or take illegal substances into the Property or use the Property in any way for any unlawful purpose.
11. **Authorised vehicle parking** - Where the tenant has been allocated specific car parking the tenant agrees that they, their guests and other occupants of the tenancy will use these car parks.
12. **Callout Charge** - The Tenant agrees to pay any reasonable callout charge if: • The Tenant does not adhere to prior arrangement for entry • Where no fault is found • The repairs are due to damage or negligence by the Tenant. Where the tenant requires the landlord’s agent to instruct a contractor to attend the tenancy premises to conduct some work and if the agent does instruct a contractor to attend the tenancy premises and the contractor cannot gain entry because of the tenants default or does gain entry but cannot find any fault or does complete work which can be attributed to the tenants negligence, then the reasonable cost of the contractor may be charged to the tenant.
13. **Carpets, Drapes and Curtains** - The tenant acknowledges that at the conclusion of the tenancy, the carpets will be inspected to see if they meet the standard of reasonably clean and tidy. The drapes and curtains may also be inspected to see if they too are reasonably clean and tidy, and free from mould, dirt, particles of hair and fur. If the carpets or drapes or curtains are found to be below the standard of reasonably clean and tidy, then the landlord or agent may require the item to be recleaned by the tenant, or the landlord or agent may pay for the item to be cleaned to the standard and may charge the tenant for the cost of cleaning.
14. **Collection Costs** - If at the end of the tenancy there is an unsatisfied debt, then the tenant agrees that the tenant be liable for and pay for all costs of recovery of the debt, which costs shall be collected by a debt collection agency. Costs payable by the debtor shall include, legal fees, commissions, fee's and disbursements, and /or court filing fees and disbursements.
15. **Conditional Meth Clause** - In the event that the owner/landlord of the rental property requests a test for methamphetamine: Both the landlord and tenant agree that the tenancy agreement entered into, shall be subject to a test for methamphetamine to be carried out as soon as possible. (1) If the test results are less than 1.5 micrograms per 100cm2 (the clean back standard) on an initial / preliminary test, then the tenancy agreement shall be deemed to have gone unconditional so far as methamphetamine contamination is concerned. (2) If the test results are more than 1.5 micrograms per 100cm2 and less than 15 micrograms per 100cm2 per room for any room, then the room shall be deemed to be habitable, and the tenant shall be given the option of making the tenancy agreement unconditional on the date of the receipt of the test results by the tenant. (3) If the test results are higher than 15 micrograms per 100cm2 per room (by a comprehensive test), then the tenancy agreement shall be deemed to have never become unconditional. Any money paid shall be refunded forthwith. (4) Or the tenant at the tenant's sole discretion may elect to proceed with the tenancy agreement subject to the landlord's right and obligation to have the room cleaned back to the clean back standard of 1.5 micrograms per 100 square centimetres for any applicable room, as soon as practicable. Until the room is cleaned, the tenant agrees to keep the room sealed closed and undertakes not to use it at all.
16. **Drains and Wastes** - The Tenant agrees to keep all drains, sink wastes and sanitary appliances clear and free from obstruction.
17. **Excessive Noise** - The Tenant agrees to keep the noise to a reasonable level and be considerate of neighbouring properties, their occupants and other Tenants.
18. **Inspections and Photographs** - The Tenant acknowledges that photographs or videos will be taken to record the condition of the Property. The Tenant agrees to move or cover any personal effects that might be photographed. If the Tenant fails to move or cover any item, then the Tenant agrees to those items being included in any photographic record.
19. **Landlord's Right of Entry** - The Landlord or the Landlord's agent has the right to inspect the Property no more than once every 4 weeks, provided 48 hours notice has been given by the Landlord or 24 hours notice for a tradesman carrying out necessary maintenance.
20. **Lawns and Gardens** - The Tenant agrees to keep the Property including lawns and gardens in a reasonably clean and tidy condition free from rubbish and papers. The Tenant also agrees not to damage or remove any tree, shrub or bush from the Property. The Tenant agrees to keep the lawns and gardens weeded and in a generally tidy condition. The Tenant shall be responsible for the removal of garden waste.
21. **Light Bulbs** - Keeping the light bulbs in working order for the Property is the Tenant's responsibility. The Tenant agrees to use the correct light bulb for the socket, and for them to all be in working order at the end of the tenancy.
22. **Maintenance Consent** - The tenant consents to their contact information being supplied to relevant contractors should maintenance, replacement, removal or installation work be required to be completed at the property.
23. **Maximum Numbers** - The Tenant is responsible to restrict the number of occupants residing at the Tenanted Property to the maximum number of occupants specified in the tenancy agreement.
24. **Methamphetamine Testing** - Upon proper notice, the Landlord may enter the Tenanted Property to conduct a test for the presence of methamphetamine, with or without the assistance of an expert.
25. **Outgoings** - The Tenant agrees to pay for all outgoings exclusively attributable to the Tenant's occupation including electricity, gas, gas to heat hot water, telephone and internet charges.
26. **Pets** - The Tenant agrees not to keep or feed or allow or permit any other person to keep or feed or allow any pet or other animal on or about the Property unless the Landlord agrees otherwise and modifies this agreement in writing to reflect Landlord's permission.
27. **Property Inspection Report** - At the time of occupation, the Tenant shall complete a Property inspection Report in conjunction with the Landlord or Landlord's agent, expressly detailing the standard of cleanliness and maintenance requirements of the Tenanted Property. If the subsequent Property Inspection Reports during the tenancy show the Tenant has not maintained the upkeep of the Property, the Landlord may issue a 14 day notice to remedy the issue.

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28. **Rent Reviews** - The Landlord may review the rent from time to time and may increase the rent and bond in accordance with Section 24 and Section 18 of the Residential Tenancies Act 1986. No increase will take effect within 12 months after the date of the commencement of the tenancy or within 12 months after the last increase took effect.
29. **Repairs** - The Tenant agrees to notify the Landlord as soon as possible after the discovery of any damage or the need for repairs. The Tenant shall not arrange for any maintenance or repairs without the Landlord's prior consent.
30. **Smoking and Illegal Substances** - The Tenant agrees not to smoke cigarettes, cigars, vaporisers or electronic cigarettes, (recognizing that all can set off smoke alarms) or possess or take illegal substances into the Tenancy Property and not to allow any other occupants, guests or invitees to do any of the above, or to use the Property in any way for any unlawful purpose.
31. **Subletting** - The Tenant shall not, without prior written consent from the Landlord or Property Manager: 1. Sublet or part with possession of the Property belonging to the Landlord. 2. Rent out the Property, or part thereof, on a short-term or daily basis or for the third parties' holiday purposes for financial reward. 3. Fail to continue to use Tenancy Property during the tenancy as a "principal" place of residence of the Tenant and authorised occupants. 4. Cause or permit the Landlord's insurance policy to be vitiated or to cause an increase in premium, or excess. 5. Conduct business where council consent is required without council consent. 6. Permit any person to holiday in the Tenancy Property for financial reward when that person has not been approved by the Property Manager or Landlord. 7. Rent out the Tenancy Property or any portion of the tenancy Property when the Tenant is not personally present to supervise the security of the Property and behaviour of the occupants.
32. **Tenants Obligation to Leave** - On termination of the tenancy, the Tenant shall actually quit the tenancy on the last day. The Tenant further agrees that at the termination of the tenancy, to return all pass cards, remote controlled door openers or keys belonging to the Landlord and remove all rubbish and personal belongings. Failure to do so may result in professional cleaning, replacement of keys or other costs to be paid by the Tenant.
33. **Ventilation** - The Tenant agrees to keep the Property well ventilated at all practical times when the Tenant is personally in residence, to prevent the build up of mould and mildew. If the Tenant is using an LPG gas bottle heater, the Tenant must ensure that it is not used in bedrooms and at all other times ensure that the house is well ventilated. It is recommended that this type of heater is not used for Health and Safety and moisture reasons.
34. **Water Charges** - The Tenant agrees to pay for all metered water charges provided to the Property where the water supplier charges on the basis of consumption and all corresponding waste water charges incurred during the tenancy.

ADDITIONAL TERMS & CONDITIONS

1. **Above Ground Pools** - The Tenant must not install or erect any form of pool (such as spa pool, or plastic swimming pool) or allow or permit any other person to do so anywhere on the Property without the prior written consent of the Landlord.
2. **Alterations/Renovations/Additions** - The tenant agrees not to make any alteration to the premises without the prior written consent from the landlord. The landlord must consider all requests from tenants for minor changes to the rental property and must not unreasonably withhold consent. Responses to requests by the tenant must be provided in writing by the landlord within 21 days. The tenants must return the property to a condition that is substantially the same as the condition that the property was in before any minor changes were made. For tenants fixtures (renovation alteration or addition) it will be usual for the landlord to require reinstatement at the conclusion of the tenancy, however the landlord and tenant may agree to a different arrangement in relation to the change at the end of the tenancy (for example that the change will remain in place); this agreement must be in writing and signed by the tenant and by the landlord.
3. **Bathroom Care** - The Tenant agrees to properly clean the bath, shower vanity and any amenities provided in the bathroom on a regular basis to avoid the build-up of calcium and hard to remove dirt. The Tenant further agrees to wipe up water spilled on the floor to prevent damage being done to the floor and subfloor.
4. **Email address for service** - The Tenant acknowledges that the email address provided by the Tenant on this form constitutes an address for service and may be used in addition to the address of a physical place in New Zealand. The Tenant agrees that for the purposes of determining a legal address for service, the email address noted on this form by the Tenant meets these requirements and the Tenant consents to receiving communications by email. The Tenant agrees to advise the Landlord of any change to the Tenant's email address for service. If the Tenant does not advise the Landlord of any change to the Tenant's email address for service the Tenant understands that any notices the Landlord sends the Tenant at the existing address for service will still be legally binding.
5. **Fixed term tenancies** - Note: At the end of the fixed term, the tenancy agreement will automatically convert to a periodic tenancy agreement at the end of the fixed term unless: Before the expiry, the parties may agree to extend, renew or end the fixed term tenancy or; The tenant is required to give written notice of their intention not to continue with the tenancy by giving at least 28 days Notice before the expiry or; The landlord gives written notice to end the fixed term, using one of the reasons listed in the Residential Tenancies Act 1986 Section 50(1)(a) to (b) that allows for termination of both fixed term and periodic tenancies or; The tenant is required to give written notice of their intention not to continue with the tenancy or to renew it, by giving at least 28 days Notice before the expiry. Once the tenancy has converted to a periodic term, the tenant must serve 28 days Notice in writing to the landlord to terminate the tenancy and vacate.
6. **Further Tenants** - The Tenants agree that only occupants named on the tenancy agreement are to reside at the Property. If any persons want to reside at the Property they must submit applications and go through the full vetting process. It is only with the consent of the Landlord that any new applicant will be added to the tenancy agreement as a Tenant and be allowed to reside at the Property.
7. **Ground Moisture Barrier - No Storage** - The tenant acknowledges that the tenancy premises has a ground moisture barrier installed under the dwelling, to comply with the Healthy Homes regulations. The moisture barrier is made of plastic sheeting and can be easily punctured. The tenant agrees not to store any personal effects on the moisture barrier and to ensure that it is not damaged, punctured or ripped.
8. **Health and Safety Clause** - The Tenant agrees to notify the Landlord at the earliest moment of any health and safety issues which arise at the Tenancy Property. The Tenant agrees not to do anything at the Property that might risk or vitiate the Landlords Insurance policy. Where the Tenant is using part of the Tenancy Property for any small business, they acknowledge that doing so makes them a ”Person Conducting a Business or Undertaking” or P.C.B.U under the Health and Safety At Work Act 2015, and the Tenant agrees to promptly provide the Landlord with a copy of the tenant's Health and Safety plans protocols on request.
9. **Heat Pump - Cleaning Filters** - The Tenant agrees to clean the heat pump(s) filter(s) approximately every 3 months to a reasonably clean and tidy standard to improve the efficiency of the heat pump(s) and to minimise the cost of its operation. This should be done by opening the heat pump(s) and wiping down the filter(s) with a wet cloth, or similar, to remove any dust that has settled on the filter. Should the Tenant require any guidance on how this should be done, the Tenant agrees to ask the Property Manager to demonstrate how this can be achieved safely under the Health and Safety at Work Act 2015.
10. **Lease Breaks** - If the tenant wishes to vacate the fixed term tenancy early, the tenant may submit a request in writing seeking the landlord's consent. The tenant may also apply to the Tenancy Tribunal to be released from the tenancy agreement in accordance with S.66 of the Residential Tenancies Act 1986. The landlord reserves the right to grant or decline the request for early release from the tenant. If the landlord consents to ending the fixed term early, the landlord may place conditions on the consent addressing the matters below and including charging the tenant reasonable costs. The landlord, under Section 44A of the Residential Tenancies Act 1986, will provide an itemised breakdown of these reasonable costs. If the tenant does wish to break their lease, they must apply in writing. If the application is successful, then the landlord and tenant shall enter into an agreement. The tenant is liable for the rent and other matters contained in the agreement until they have been formally released in terms of the agreement. The tenant is liable for the reasonable costs of having the property re-rented.
11. **Maintenance** - The Tenant agrees to notify the Landlord immediately upon the discovery of any damage or the need for repairs to the Property. The Tenant acknowledges that only the Landlord may authorise any repairs unless it is an emergency and if the Tenant organises a trades person to complete work without permission of the Landlord, they may be liable for any cost. The Tenant acknowledges they may be liable for any damage caused by a repair which is not authorised by the Landlord.
12. **No interference to neighbours** - The Tenant acknowledges that the Tenant is bound by S.40 (2) (c) of the Residential Tenancies Act 1986 and that the Tenant must not cause or permit any interference with the reasonable peace, privacy and comfort of the Landlord's other tenants in the use of the Property or any of the Landlord's other tenants in the Property occupied by those other tenants, or with the reasonable peace, comfort or privacy of any other person residing in the neighbourhood.
13. **Parties** - The Tenant acknowledges that the Tenant must not cause or permit any interference with the reasonable peace. privacy and comfort of the Landlord's other tenants, or cause or permit a breach of the reasonable peace, privacy and comfort of any other person residing in the neighbourhood. The Tenant agrees that any party held or permitted by the Tenant shall not breach this clause or the provisions of the Residential Tenancies Act 1986.
14. **Rent Paid by Automatic Payment** - The Tenant agrees to pay the rent by electronic payment weekly and to use the reference supplied by the Property Manager.

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15. **Shared Driveway** - The Tenant must ensure that they and their visitors do not park on the shared driveway. The Tenant agrees not to obstruct any neighbours parking or thoroughfare.
16. **Shower Traps** - The tenant agrees that if the shower has a “hair trap" in the shower then the tenant will clean the trap on a regular basis to prevent the build-up of hair in the waste pipe and thereby prevent blockages. Should the tenant fail to clear the trap and cause a blockage, then the tenant may be liable for the cost of a plumber to clear the blockage.
17. **Sight unseen clause** - The Tenant acknowledges that the Tenant is unable to view the tenancy property personally. The Tenant has either employed another person or firm (“the Inspector") to inspect the property or has viewed the property by photographs or video link or similar technology. In either case the Tenant is satisfied about the size of the dwelling, its address, its condition, the number of bedrooms, the neighbourhood and the amenities of the area. The Tenant acknowledges that they rely on the report from either the Inspector or the tenant relies on photos or video link presentation to make the decision to enter into an unconditional contract to rent the dwelling. The Tenant agrees to be bound by the tenancy agreement including the commencement date, even though the Tenant may have never personally seen the physical dwelling .
18. **Tenant Absence** - If the Tenant is going to be absent from the Property or the Property will be left empty for a period of 4 weeks or more, then the Tenant will advise the Landlord in writing before leaving.
19. **Tenant's insurance clause** - The Landlord advises the Tenant that it is in the Tenant's best interest to have and maintain a policy of Tenant's insurance which covers both damage or loss to the Tenant chattels and personal effects and also has a public liability / third party damage or loss, component. The Landlord cannot compel the Tenant to take out Tenant insurance but seriously recommends it.
20. **Tenants Confirmation of Ingoing Condition Report** - The condition of the premises at the commencement of the Tenancy and any additional furniture and effects will be recorded on a separate Schedule (“Property Condition Report"). This will be supplied to the Tenant by the Landlord via the email address for service and it will be the responsibility of the tenant to return the Property Condition Report to the Landlord noting any items of difference within seven (7) days of commencement of the tenancy, otherwise the Tenant accepts the premises in the condition referred to in the Property Condition Report.

INSURANCE STATEMENT

Is the property insured? ☑ Yes ☐ No **Tenants may request a copy of the policy/policies.**

Insurance type (e.g. Dwelling Insurance)

Asset Protector

Excess information

$650.00

SMOKE ALARM DISCLOSURE STATEMENT

Total No. of alarms at the property 1 **At least one alarm per storey/level** ☑ Yes ☐ No

Last checked 05/07/2022 **Alarm within 3 meters of all bedrooms** ☑ Yes ☐ No

Checked by Smoke Alarm Testing Services

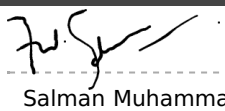
SMOKE ALARMS

	Type	Location	Is the smoke alarm new?	Expiry date
1.	Photoelectric Smoke Alarm	Hallway	☑ Yes ☐ No	05/07/2032

Smoke alarms assessed on 05/07/2022

Notice to tenants - The person or firm named in the "Property Management Firm/Agent Details" box, is an intermediary between the owner/principal/landlord and you as tenant. The agent is acting "as an agent for" or "on account of" the landlord. The below parties agree to the terms set out in this Tenancy Agreement NOTE

TENANCY AGREEMENT SIGNATURE SECTION | SIGNED BY THE TENANT/S

Tenant 1  **Date** 18-10-2023

Name Salman Muhammad Khan

TENANCY AGREEMENT SIGNATURE SECTION | SIGNED BY THE LANDLORD/LANDLORD'S AGENT

Property manager signature  **Date** 18-10-2023 **1(d)**

of Five AM Property Management Ltd **acting as agent for and on behalf of**

the landlord Vivienne Lawson

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HEALTHY HOMES STATEMENT OF INTENT SIGNATURE SECTION | VERSION 2.0

Declaration by Landlord(s) in respect of S.13A (1CA) Residential Tenancies Act 1986

Five AM Property Management Ltd acting as agent for

Vivienne Lawson, declare:

a. That on or after the commencement of the tenancy, I / We will comply with the healthy homes standards as required by S.45 (1) (bb) or 66 I (1)(bb) and
b. including any information which may be prescribed by regulations made under S. 138 B (5) and

(ICB) If there is a written variation or renewal of the tenancy agreement in accordance with S.13B (1), then I / We the landlord(s), further declare:

a. That on or after the time when the variation or renewal takes effect, I / We will comply with the healthy homes standards as required by S.45(1)(bb) or S.66 I (1)(66) (as the case may be);and
b. and including any information which may be prescribed by regulations made under S.138 B(5).

Property management agency | Signed by the landlord/landlord's agent

Property manager signature  **Date** 18-10-2023 **1(d)**

of Five AM Property Management Ltd **acting as agent for and on behalf of**

the landlord Vivienne Lawson

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Healthy Homes Statement

TENANCY ADDRESS

Address 3a Bennett Road, Pakuranga, Auckland 2010

COMPLIANCE DATE

The healthy homes compliance date for this tenancy: 11/03/2024

HEATING

1. Heating standard exemptions

☑ **No heating exemptions applies** ☐ **Heating exemption** ☐ **Partial exemption/Alternative options**

2. Main living room required heating capacity

Heating capacity of the main living room: 6 kW

3. Qualifying heaters

The type(s) of qualifying heater(s) installed in the main living room (e.g. heat pump, flued gas heater, modern wood burner) and heating capacity/capacities. If there is more than one, make sure to include each heater, and please note which heater has which kW:

1. Type Heat Pump Capacity 5.8 kW

4. Does the 'tolerance' or 'top up' allowance for existing heaters apply?

☐ **Yes** ☑ **No**

Heating standard assessed on 18/11/2020

INSULATION

CEILING INSULATION

1. Does the ceiling insulation above all domestic living spaces meet the requirements of the insulation standard?

☑ Yes - Entire premises ☐ Yes - Some areas of the premises ☐ No - None of the premises

Do you know the R-value of ceiling insulation when it was installed?

☑ Yes ☐ No

R-value of ceiling insulation when it was installed: R2.4

Date insulation was installed: 17/02/2021unknown

Date insulation was last inspected: 17/02/2021

Type of insulation

Pink Batts

☑ I confirm the insulation is in reasonable condition (without any mould, dampness, damage or gaps)

UNDERFLOOR INSULATION

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2. Does the underfloor insulation meet the requirements of the insulation standard?

- [x] Yes - Entire premises
- [ ] Yes - Some areas of the premises
- [ ] No - None of the premises

R-value of underfloor insulation when it was installed: 1.5

Date insulation was installed: 17/02/2021

Date insulation was last inspected: 17/02/2021

Type of insulation

Mammoth

- [x] I confirm the insulation is in reasonable condition (without any mould, dampness, damage or gaps)

WALL INSULATION

3. Do the walls of the premises have insulation? Note: wall insulation is not compulsory in rental properties. You only need to include this information if it's known.

- [ ] Yes - Entire premises
- [ ] Yes - Some areas of the premises
- [ ] No - None of the premises
- [x] I don't know

If you don't know if there is wall insulation in any, or in some walls, explain why not and include confirmation that you have taken all reasonable steps to find the information.

Nor Accessible

Insulation assessed on 18/11/2020

VENTILATION

1. Windows in habitable spaces

Do all habitable rooms in the property have one or more windows, doors or skylights that open to the outside and meet the requirements below?

- [x] **All habitable spaces**
- [ ] **Some habitable spaces**

List all rooms at the property and whether or not they meet the ventilation standard. If not, briefly state how the specific exemption applies.

1. Location	Main entrance	Meet requirements	yes
2. Location	Living room	Meet requirements	yes
3. Location	Dining room	Meet requirements	yes
4. Location	Bedroom	Meet requirements	yes
5. Location	Bedroom 2	Meet requirements	yes
6. Location	Bathroom	Meet requirements	yes

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2. Mechanical ventilation standard for kitchens and bathrooms

Does each room in the rental property with an indoor cooktop, bath or shower have an extractor fan installed that vents to the outside and is in good working order? Complete one of sections (a), (b) or (c) for this question.

☐ **All rooms** ☑ **Some rooms** ☐ **Not installed in any rooms**

State the diameter or exhaust capacity of each extractor fan and which room(s) they are located in, if applicable. Extractor fans that vent to the outside and were installed before 1 July 2019 don't need to meet performance requirements of the ventilation standard. In this case, state below that you are relying on the modified standard for extractor fans installed before this date. If you select qualifying ventilation, you must state the exhaust capacity and a brief description of how it meets the definition of qualifying ventilation.

1. Location Kitchen Fan installed yes Installed pre 2019 yes

Statement

Rangehood vented to outside

2. Location Bathroom Fan installed yes Installed pre 2019 yes

Statement

No exterior vent located for bathroom

Ventilation assessed on 17/02/2021

MOISTURE INGRESS AND DRAINAGE

1. Does the property have gutters and downpipes that efficiently drain storm, surface, and ground water to an appropriate outfall? ☑ **Yes** ☐ **No**

An appropriate outfall will generally be the storm water system provided by your local council. It could also be a properly working soakage system, natural watercourse, adequate water storage system or other constructed water way.

Note: It has been a requirement for all homes to have efficient drainage for the removal of storm water, surface water and ground water since 1947 as part of the Housing Improvement Regulations 1947.

2. Does the property have any enclosed subfloor spaces? ☑ **Yes** ☐ **No**

The subfloor is considered to be enclosed if the airflow into and out of the space is significantly obstructed along at least 50% of the perimeter.

3. Does the ground moisture barrier meet the standard? ☑ **Yes** ☐ **No**

Moisture ingress and drainage assessed on 28/07/2021

DRAUGHT STOPPING

1. Does your property have any open fireplaces? ☐ **Yes** ☑ **No**

2. Is the property free from unintentional and unreasonable gaps or holes? ☑ **Yes** ☐ **No**

This includes gaps or holes that allow noticeable draughts in or out of the building. Areas include, but are not limited to, doors, windows, walls, floors and ceilings.

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HEALTHY HOMES SIGNATURE SECTION

Five AM Property Management Ltd acting as agent for

Vivienne Lawson, declare that

all reasonable efforts have been made to ensure this healthy homes statement is true and correct as at the date of signing.

Property manager Details | Signed by the agent acting on behalf of the Landlord

Subsection (1CA) - New Tenancy

On and after the commencement of the tenancy, the landlord will comply with the healthy homes standards as required by section 45(1)(bb) or, for boarding houses, 66(1)(bb), and will provide all information prescribed by regulations under section 138B(5).

Property manager signature  **Date** 18-10-2023 **1(d)**

of Five AM Property Management Ltd **acting as agent for and on behalf of**

the landlord Vivienne Lawson

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